

# Administrative Manual

## Section: General Administrative Procedures and Compliance

Policy Manual Number: 200.045

### Chapter: **Redetermination**

**Legal Authority:** Sec. 1902 of the Social Security Act [42 USC 1396a]; 20 CFR 404, Subpart J; 42 CFR 435.911; 42 CFR 435.916; 42 CFR 435.926; 42 CFR 435.172; 42 CFR 457.343; 42 CFR 431.210; 42 CFR 431.211; 42 CFR 431.213; 42 CFR 407.47; 42 CFR 435.948-949; Tenn. Comp. R. & Regs. 1200-13-20-.09(1); 1200-13-20-.08(7)(a)(7)

#### **1. Overview**

The redetermination process established for Modified Adjusted Gross Income (MAGI) Medicaid categories and Children's Health Insurance Program (CHIP) will also be applied to the Medically Needy categories, and Aged, Blind and Disabled (ABD) Medicaid categories, with certain exceptions. Supplemental Security Income (SSI) Cash Recipients, eligible for TennCare Medicaid, follow the redetermination requirements of the Social Security Administration (SSA).

#### **2. Policy Statement**

Eligibility for Medical Assistance must be redetermined once every 12 months, and no more frequently than once every 12 months, unless there is a reported change. TennCare redetermines eligibility during the 12-month period when a reported change may affect eligibility. Individuals are reviewed for all categories of eligibility during the redetermination process.

SSI Cash Recipients shall follow the SSA program redetermination requirements. Upon confirmation that an individual is no longer eligible for SSI payments, TennCare will review for eligibility in all other Medical Assistance categories.

#### **3. Definitions**

**Medical Assistance:** Includes TennCare Medicaid, TennCare Standard, CoverKids, Katie Beckett, and Medicare Savings Program (MSP) categories.

**Recent and Reliable:** Information verified within the last 6 months or verified more than 6 months ago and not subject to change.

**Stable Incomes:** Incomes that have been verified and are not likely to change. These include, but are not limited to, alimony, annuities, pension, Railroad Retirement, SSI, VA Aid and Attendance and Housebound Allowances, VA Disability, VA Pension, Social Security Disability Benefit (SSDI), Social Security Survivor or Retirement Benefit, and VA Payments for Unreimbursed Medical Expenses.

## 4. Redetermination Process

### a. Eligibility Period

TennCare redeterminations occur for individuals currently eligible for Medical Assistance every 12 months. A redetermination of eligibility occurs during the 12-month eligibility period when a reported change, whether from a data source or individual, may affect eligibility. During the 12-month period individuals are required to report any change in circumstance.

### b. Continuous Eligibility

#### i. Pregnant Women

##### 1. TennCare Medicaid

Women who have been determined eligible for and enrolled in TennCare Medicaid while pregnant and children under the age of 19 who have been determined eligible for TennCare Medicaid, TennCare Standard, or CoverKids Children while pregnant will remain eligible for that respective benefit through the last day of the month of a 12-month postpartum period, which begins on the day pregnancy ends, regardless of most changes in circumstance and regardless of how pregnancy ends. These women will generally remain in the same benefit category for the duration of the 12-month postpartum period, and they will not have their eligibility redetermined until the end of the 12-month postpartum period. This is true even if it has been greater than 12 months since their last eligibility determination. Women in a presumptive eligibility period are not eligible for continuous eligibility.

NOTE: Women who are approved for the Pregnancy MAGI Category of Eligibility (COE) with an effective date of eligibility after the end of their pregnancy will remain eligible for benefits through the last day of the month of a 60-day postpartum period.

The 12-month postpartum period will end prior to the end of the 12 months in the following circumstances:

- a. Coverage is voluntarily terminated;
- b. The individual is no longer a resident of Tennessee;
- c. The State determines that eligibility was erroneously granted at the most recent eligibility determination or renewal of eligibility because of state error, or fraud, abuse, or perjury attributed to the woman or her representative; or
- d. Death.

## **2. CoverKids**

Women who are eligible for and enrolled in the CoverKids Pregnant Woman COE will remain eligible for benefits through the last day of the month of a 60-day postpartum period. The postpartum period begins on the day pregnancy ends, regardless of changes in circumstance and regardless of how pregnancy ends.

### **ii. Children under the age of 19 Enrolled in Medicaid**

Children under the age of 19 who are determined eligible for and enrolled in certain TennCare Medicaid categories will remain eligible for that respective benefit through a 12-month continuous eligibility period, regardless of most changes in circumstance. Continuous eligibility for children is not applicable to the following TennCare Medicaid categories IE Foster Care, Widow/Widower, Medically Needy Child, Medically Needy Pregnancy, Katie Beckett Part B, Transitional Medicaid, Extended Medicaid, or EMS. Children in a presumptive eligibility period are not eligible for continuous eligibility. At the end of the 12-month continuous eligibility period, eligibility will be redetermined.

A child may transition to another TennCare Medicaid COE that provides continuous eligibility during the 12-month period. At that time, they will be granted a new 12-month continuous eligibility period. Exceptions to the 12-month continuous eligibility period are as follows:

1. The child turns 19;
2. Coverage is voluntarily terminated;
3. The child is no longer a resident of Tennessee;
4. The State determines that eligibility was erroneously granted at the most recent eligibility determination or renewal of eligibility because of state error, or fraud, abuse, or perjury attributed to the child or the child's representative; or
5. Death.

If a child enrolled in the Child MAGI COE and is confined in a hospital at the time they turn 19, coverage will remain open until they have been discharged.

### **iii. CoverKids Children**

Children under the age of 19 determined eligible for CoverKids Child will remain eligible for a 12-month continuous eligibility period, regardless of most changes in circumstance. At the end of the 12-month continuous eligibility period, eligibility will be redetermined. At that time, they will be granted a new 12-month continuous eligibility period. Exceptions to the 12-month continuous eligibility period are as follows:

1. The child turns 19;
2. Coverage is voluntarily terminated;
3. The child is no longer a resident of Tennessee;
4. The State determines that eligibility was erroneously granted at the most recent eligibility determination or renewal of eligibility because of state error, or fraud, abuse, or perjury attributed to the child or the child's representative; or
3. Death.

4. The child is determined eligible in a TennCare Medicaid category.

**c. Ex Parte Review**

An ex parte review will be done for individuals during the redetermination process. The ex parte process attempts to redetermine eligibility without requesting additional information from individuals. The review is automatically processed and completed using information available to TennCare, including information from electronic data sources. The ex parte process considers eligibility for all categories of Medical Assistance.

Individuals in the following categories do not go through the ex parte process:

- i. Presumptive Breast and Cervical Cancer;
- ii. Presumptive Pregnancy;
- iii. Hospital Presumptive Eligibility;
- iv. Emergency Medical Services;
- v. Supplemental Security Income (SSI) individuals (while still receiving SSI payments); and
- vi. Immediate Eligibility (IE) Foster Care.

Recent and reliable incomes that are received from an electronic data source or considered stable do not need to be reverified during ex parte review.

When an individual is redetermined eligible, TennCare will notify the individual of the eligibility determination. When TennCare is unable to auto-renew eligibility based on available information, a renewal form will be provided to the individual.

## **5. Renewal Form**

When TennCare is unable to auto-renew eligibility based on available information, TennCare will provide the individual with a prepopulated renewal form. The renewal form will request information necessary to consider the individual for all categories of Medical Assistance. Individuals will have 40 days from the date on the renewal form to complete, sign, and submit the renewal form to TennCare. The renewal form may be submitted online, by phone, in-person, by mail, or by fax. TennCare will request additional information, when needed, to redetermine eligibility. See the *Verification* policy.

## **6. Determination**

Individuals must receive notice of a renewal determination. If an individual fails to submit information needed for a determination or submits information and is no longer eligible for Medical Assistance, TennCare will provide advance notice of termination. An adverse action taken on an individual's case requires advance notice. Adverse actions include termination of benefits or reduction of benefits.

## **7. Advance Notification**

If an individual reports a change that will reduce or terminate Medical Assistance benefits, is determined ineligible, or fails to submit necessary information during the renewal process, a 20-day advance notice will be sent. Adverse action is not taken until the 20-day adverse action period has expired. The adverse action notice period allows the individual to provide any information that will alter the decision to reduce or terminate benefits. If the individual submits information requested during the advance notice period, eligibility will continue until a determination of eligibility is completed.

Advance notice of termination is not required in the following situations:

- a. Verified report of the individual's death;
- b. Written statement from the individual waiving his right to advance notification;
- c. The individual's whereabouts are unknown and the post office returns mail directed to him indicating no forwarding address;
- d. Confirmed report that individual is receiving Medicaid or CHIP in another state;
- e. Individual has been admitted to an institution where he is not eligible to receive benefits;
- f. To an enrolled child that is removed from the home as a result of a judicial determination or is voluntarily placed in foster care by her parents or guardian, and the child's eligibility category is changed; or
- g. Assistance is to be discontinued or reduced as the result of an appeal decision.

Note: A two-day advance termination is provided for voluntary termination requests.

## **8. Reconsideration Period**

If the individual fails to submit the renewal form or requested information and eligibility is terminated, TennCare will reconsider eligibility without requiring a new application if the requested information is provided within 90 days of the termination date. Unless an exemption applies, TennCare will fill a gap in coverage when the information provided during the 90-day reconsideration period results in an approval. In accordance with federal law, an exception is the Qualified Medicare Beneficiary (QMB) group, which can only be effective the first day of the month after the individual is approved.

## **9. In-person Interview**

Individuals are not required to complete in-person interviews for redetermination.

## **10. Redetermination for Individuals Losing SSI Eligibility**

SSI recipients who lose their SSI coverage will undergo a redetermination of eligibility for Medical Assistance upon notification of SSI termination after all SSI appeal rights have been exhausted. If an individual has an open SSI appeal, TennCare Medicaid coverage will continue until the resolution of the SSI appeal and redetermination of eligibility takes place. There will be a 75-day wait period before redetermination can begin after loss of SSI and between each level of SSA appeals.

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There are four levels of SSI appeals:

- a.** Reconsideration.
- b.** Hearing by an administrative law judge.
- c.** Review by the Appeals Council.
- d.** Federal Court review.

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